

of more than mere curiosity ; for at a time, when to attack whatever is established and to humble whatever is exalted, is the order of the day, interesting indeed, and perhaps interested is the Enquiry, how far does extend, or rather how much may be circumscribed, the Authority of the first criminal Magistrate of the Land.

To establish then the first proposition, that this Action will not lie at all. I did trust, when I came into Court, that we were in possession of Cases, quite decisive upon the subject ; and I cannot express the astonishment, with which I heard not a few of those very cases, relied on by my friend Mr. *Perrin*, for the establishment of his own Argument.—Well he knew, what pressed upon his case : and at first I thought, that perhaps he hoped to impress upon your Lordship's mind, that these very Authorities were legitimately for him, and that in our mention of them, we should endeavour merely to distinguish them away. I shall pursue them pretty nearly in the same order ; but I shall point out to your Lordships, some singular omissions in the Citations from them already made. First then, in the case of *Floyd v. Barker* 12 Co. Rep. 23 : that was indeed an Action of Conspiracy, brought against a Judge of the Grand Sessions of *Wales*, and against a Grand Jury for the imputed murder, in the shape of a legal condemnation, of a certain gentleman in *Wales* ; but Mr. *Perrin* has not stated the manner, in which Lord *Coke* tells us that the Complainant was received.—“ It was” says he, “ ordered, “ and adjudged by all the Court, that the said Bill, “ without any answer to it be taken off the file, and “ utterly destroyed ; and it was agreed, that, in as much “ as the Judges of the realm have the Administration of “ Justice, under the King, they ought not to be drawn “ in question, for any supposed corruption, or for any “ Judicial proceedings before them, or tending to the “ slander of the Justice of the King, which will trench “ to the scandal of the King himself: except it be before “ the King himself. They are only to make account to “ God and to the King, and not to answer any suggestion in the Star Chamber ; for this would tend to the “ scandal, and subversion of all Justice ; and those who

“ are the most sincere, would not be free from continual calumniation.” The Marginal annotator, upon the words “ to God and the King,” makes a query :—“ query “ also to the Parliament.” He makes no query : whether he is responsible also to the Common Pleas.—Such a query, indeed was never made, except by the present Plaintiff. But Lord *Coke* in what follows, clearly shews, that, by the account to the King, he means the King in Parliament : for he goes on to state, that Chief Justice *Weyland*, and Judge *Hengham*, accused of bribery and corruption, had their causes determined in Parliament ; and he cites the Case of the Judges of *Traylbaston*, in *Edward the Third's time*, which was examined before the King in Parliament, and not by force of any Commission ; and he says, that *Thorpe's Judgment*, who was drawn in Judgment before Commissioners, was held to be against law : and upon that he was pardoned ; and it is contained in the same record, that it shall not be drawn into precedent. Such, then, is the Case of *Floyd and Barker*. Such are the circumstances which Mr. *Perrin* has omitted to mention.—Their true bearing upon the present question, is for your Lordships to determine.

But I find, my Lords, a still older authority, in which the language of the Constitution is, that Parliament is the tribunal for such a complaint ; and that the King in Parliament is the proper reformer of the abuse.—It is thus entered in the *Parliamentary Roll* of the 1st year of King *Henry 4th*. “ The Commons pray, that the Lords, spiritual and temporal, nor the Justices, be not received hereafter for their excuse, to say, that they do not dare to say the law for doubt of death.” And it is answered : “ That the King holds all his Lords and Justices, for good, sufficient and loyal ; and that they will not give other Counsel or advice, but what is honest, and just, and profitable for him and the Realm ; and if any will complain, in especial, in time to come, the King will cause to reform and amend.” And therefore when Mr. *Perrin* asks, whether there is any wrong, for which the Constitution has provided no remedy I will say, that there are wrongs, which the law will not presume to be possible, and for which, for that reason, no remedy is pro-

vided. If a *King of England* should stab one of his subjects, I would ask *Mr. Perrin*, whether the Law has provided any, and what course of punishment for the offence? And as well might we be told, that on account of the decent omission of the Law in this particular, the life of no man in *England* is secure, as that the liberty of the subject is an empty sound, if the doctrine I contend for, be indeed the language of the Constitution. I would say so, if indeed I were contending for the absolute irresponsibility of the Chief Justice; but is that the Case? No, my Lords, I only deny, that he is to answer to this tribunal. If there is a man alive who believes, that Lord Chief Justice *Downes* has acted through injustice, or oppression, to Parliament let him bear the tale. If he believes him on the contrary, to have detained any man in prison through error, let him apply to the Court for his *Habeas Corpus*; and if he were founded, the error would be corrected; but let him not in such Case, by loud language, misrepresent the few hours of intermediate detention, in a Case, which the Law will not suppose to be a destruction of *British* liberties.

The next Case relied on by *Mr. Perrin*, was the Case of the *College of Physicians*, reported in *8th Coke* 212; but here again I have to lament, that the true point of that Case, was not stated to your Lordships.—That was an action of false imprisonment, brought by *Dr. Bonham* against the *London College of Physicians*. They had fined and imprisoned him, for practising in *London* without their licence. His defence had been, that he was a Doctor of the University of *Cambridge*, and that as such, he would practice in spite of them.—Lord *Coke* was himself the Judge in that Case.—All his academic feelings were roused into activity; particularly in the Case of his own *Alma Mater Cantabrigi*; and yet with this anxiety, and I must say, even with that bias, which perhaps makes this Case of less authority, than almost any other in his reports, what is the ground, on which he seeks to save the *Cantabrigian* Doctor from the *London Physicians*?—He allows the cause of their commitment to be traversed; and for what reason? Why expressly, [I use his own words] “because” says he, “they are not made Judges, nor a